

Form No: HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W. P. No.1200 of 2015

Zulfiqar Ali v. ASJ etc.

Sr. No. Of Order/ Proceeding	Date of Order	Order with signatures of Judge, and that of parties of counsel, where necessary.
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26-5-2021 Mr. Muhammad Afzal Maan, Advocate, for the petitioner.
Mr. Zafar Hussain Ahmad Ch., Additional Advocate
General with Abdul Razzaq/ASI.
Mr. Fayyaz Ahmad Gujjar, Advocate, for respondent
No.4.

Through this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner has assailed the *vires* of order dated 12.01.2015 passed by the learned ex-Officio Justice of the Peace/ASJ, Lahore.

2. Brief facts of the case are that respondent No.4 moved an application under section 22-A and 22-B Cr.P.C. before the learned ex-Officio Justice of the Peace/ ASJ, Lahore, stating therein that he was resident of Mauza Bhangali, Lahore. On 01.04.2015, the petitioner along with Ghulam Nabi personating himself as Patwari sold out 19-Marlas agricultural land to him and received an amount of Rs.300,000/- as earnest money and Ghulam Nabi received Rs.200,000/- in cash and a cheque worth Rs.100,000/- (total six lac). Subsequently, it transpired to respondent No.4 that the said land had already been sold out eight years ago. He further stated that petitioner and his co-accused had committed fraud and cheated him. The learned ex-Officio Justice of the Peace called report from the SHO, Police Station, Defense-C, Lahore Cantt., who reported that the incident took place within the area of Mauza Bhangali which falls within the limits of Police Station Barki, Lahore

and requested that the comments be called for from that police station. Thereupon, the learned ex-Officio Justice of Peace/ ASJ, Lahore after hearing the petitioner and perusing the report of the SHO, Police Station, Defense-C, Lahore Cantt., passed the following order on 31.10.2014:

“Keeping in view the report of SHO, the petitioner is advised that he may approach the concerned SHO for redress of his grievance. With these observations, this petition stands disposed of.

3. The SHO, Police Station Barki, Lahore did not comply with the orders; therefore, the petitioner filed another application under Section 22-A & 22-B Cr.P.C. before the learned ex-Officio Justice of the Peace/ ASJ, Lahore seeking implementation of above order who requisitioned a report from the SHO, Police Station, Barki, Lahore. The said SHO submitted his report stating that he summoned the parties who requested for time to settle their disputes but later on they did not appear. After hearing the learned counsel for the petitioner and perusing the record, the learned ex-Officio Justice of the Peace/ ASJ, Lahore passed order dated 12.01.2015 which is impugned herein. The same is reproduced hereunder:

“Perusal of the record reveals that *vide* order dated 31.10.2014 the petitioner was advised to approach the SHO concerned. Now the petitioner has contended that he has approached the SHO but the grievance of the petitioner has not been redressed. The respondent/SHO has failed to comply with the said direction without any lawful justification and has been delaying the matter. The contents of the application which the petitioner has submitted to the SHO make out the commission of cognizable offence.

In these circumstances, relying upon the procedure laid down by the Hon’ble Full Bench of Lahore High Court, Lahore in Khizar Hayat’s case reported as (PLD 2005 Lahore 470), copy of this order along with copy of the relevant record be sent to the CCPO, Lahore with the direction either to ensure the implementation of the order dated 31.10.2014 through respondent/ SHO or to himself proceed under section 551 of Cr.P.C. CCPO, Lahore is also directed to proceed against the respondent/SHO under Police Order 2002 for non-compliance of the above said order. The CCPO, Lahore will implement this order within seven days positively from the date of receipt of this order. In case of failure of the CCPO, Lahore to implement this order, the law will take its due course as per Khizar Hayat’s case reported as (PLD 2005 Lahore, 470). With these observations instant petition is hereby disposed of.

4. Heard. Record perused.

5. The powers vest in ex-Officio Justice of the Peace u/s 22-A read with section 25 of Cr.P.C is a part of scheme to regulate the redressal mechanism at the district level for aggrieved persons to approach for ventilation of their grievances at their door step. The mechanism so introduced is within the frame work of constitution of Islamic Republic of Pakistan which ensures inexpensive and expeditious justice.

6. The substantive rules that promote the ideal of justice must be implemented in an impartial manner through just procedures. The material precepts of justice, encompassing both substantive and procedural concept, impose obligations on and set standards for both individual and Governments; they offer guidelines for design of Government justice system;

“Justice, according to Salmond, consists in giving to every man his own”; Justinian says that “Justice is an ideal just as sculptor tries to achieve beauty with his mallet and chisel, so law is the tool of judge in pursuit of justice. Justice has been the common patrimony of humanity throughout the ages; obviously, it is a concept which is inherent in man; since it cannot be traced to any other source; justice exist even if there are only few individuals who recognize it as such.

There is nothing relative about justice, as there is nothing relative about conscience: indeed, justice is conscience but the conscience of whole of community. Those who clearly recognize the voice of their own conscience usually recognize also the voice of justice. Consider that in all question, social or historical, justice will always suggest a way to act (or judge) which will not conflict with our own conscience. You will not err if you act in any social situation in accordance with justice. The old way of saying it in Russia is “to live by truth”.

Islamic ideal on justice and rule of law enjoins its followers to decide problems which confront them with justice, whatever be the consequences. Islam does not recognize any distinction between Muslim and non-Muslim; all are equal and no discrimination can be entertained in the administration of justice. The rule of law is supreme and administration of justice is above everything else in matter of law and justice.”

7. By virtue of their respective offices, Sessions Judges and on nomination by them, the Additional Sessions Judges are ex-Officio Justice of the Peace within and for whole of the District of the province in which they are serving. They

are required to exercise such powers and perform such functions daringly and efficiently in the interest of justice to nip the evil in the bud.

8. Misdemeanours often lead to felonies if not attended promptly or properly; any violation or disobedience to order passed by an ex-officio Justice of the Peace for, registration of case, prevention against unjustified harassment or transfer of investigation, is an offence under the law.

9. Earlier, it was held that an ex-Officio Justice of the Peace in Pakistan does not perform or discharge any judicial function rather his duty is of administrative and ministerial nature; therefore, the law relating to Contempt of Court is inapplicable to an alleged non-compliance of any direction issued by him under section 22-A (6), Cr.P.C. However, a direction issued by him under section 22-A (6), Cr.P.C. is grounded in lawful authority conferred upon him by the said legal provision and by virtue of the provisions of Article 4(1)(m) of the Police Order, 2002 every police officer is under a duty to obey and promptly execute all lawful orders.¹

10. Honourable Supreme Court later held that Functions performed by the ex-officio Justice of the Peace were not executive, administrative or ministerial inasmuch as he did not carry out, manage or deal with things mechanically. Such functions as described in clauses (i), (ii) and (iii) of section 22-A(6), Cr.P.C., were quasi-judicial as Ex-Officio Justice of the Peace entertained applications, examined the record, heard the parties, passed orders and issued directions with due application of mind. Every *lis* before him demanded discretion and judgment. Functions so performed could not be termed as executive, administrative or ministerial on any account.²

11. As per section 22-A Cr.P.C, direction of Ex-Officio Justice of the Peace is termed as direction issued by a

1. PLD 2005 LHR 470

2. PLD 2016 SC 581

competent authority; order of a competent authority to the Police to act in accordance with law or to follow direction of law cannot be deflected in any way; therefore, any violation or disobedience on the part of police would render them liable to penal action. Such penal action is couched as offences under Article 155 (1)(C) & D of Police Order, 2002 and Section 166 of PPC.

12. Offence under Article 155 Police Order, 2002 is punishable with three years; therefore, as per second schedule of Cr. P.C under the head “Offences against other laws” it is reflected that an offence punishable with three years shall be cognizable. Similarly, Section 166 PPC being a scheduled offence can validly be investigated by Anti-corruption establishment.

13. Contention that as per Article 153 of Police order, 2002, offences only under Article 148 to 152 of Police Order, 2002 are cognizable and none others, is repelled with the clarification that Articles 148 to 152 fall in Chapter XVI whereas Article 155 is part of Chapter XVII of Police Order, 2002 which specifically deals with the offences committed by police officers and chapter XVI has no overriding effect on any other provisions of Police Order, 2002.

14. Though prosecution under Article 155 of the Police Order, 2002 shall require a report on writing by an officer authorized in this behalf under the rules to be made by the Government, yet registration of FIR and Prosecution of offence are different phenomena. Article 155(2) does not require report of an authorized officer for initiation of prosecution rather it is for prosecution only; therefore, initiation can be in many ways as understood through combined reading of section 154, 155, 190 & 200 of Cr. P.C

“Prosecution”, according to the Webster's New International Dictionary (Second Edition) means, inter alia, "the process of exhibiting formal charges against an offender before a legal tribunal, and pursuing them to final judgment on behalf of the State or Government as by indictment or information". And in the

Oxford English Dictionary "Prosecution" means "the following up, continuing, or carrying out of any action, scheme, or purpose, with a view to its accomplishment or attainment." ³

“Prosecution means all steps taken by court after filing of a police report or complaint with object of holding trial.”⁴

15. Prosecution" in context of Art.155(2) of Police Order, 2002, would mean institution and continuance of a criminal proceedings after framing of a formal charge before a competent Court and pursuing said proceedings until final judgment of acquittal or conviction---Merely registration of FIR, could not be construed as "Prosecution" in context of Article 155(2) of Police Order, 2002. ⁵

16. Above discussion concludes that FIR under Article 155 of Police Order, 2002 is not barred; even powers to prosecute under any other law is not affected as guaranteed through Article 183 of Police Order, 2002; therefore, delinquent police officers can be prosecuted under other laws for their derelictions or misdemeanours.

17. The question, who shall authorize the prosecution once the case through process of investigation is submitted before the court, is met by referring following amendment;

“An amendment through Police Order (Amdt) Ordinance, 2007 (XLI of 2007) was introduced and following definition clause was inserted;
Article. 2 (v-a);

“Direct” means a written order or instruction to a police officer issued by any authority empowered to direct under this order and such directing authority shall be deemed to be an officer authorized under clause (2) of Article 155”.

18. Administration of police, as per Article 10 of Police Order, 2002, in general area vest on different authorities posted under Article 11 & 15 which include City Police Officer or District Police Officer; therefore, all these authorities can direct prosecution under Article 155 of Police Order, 2002.

3. PLD 1978 SC 121;

4. PLD 1981 SC 642

5. 2006 P Cr. L.J 1564

19. Ex-Officio Justice of the Peace is authorized to deal with violations or disobedience to their orders at their own level by issuing appropriate direction to the higher police officers. On receipt of information and after inquiry, if he finds that an offence has been committed or any wrong persists or is repeated, he can order for registration of FIR under Article 155 (1) (C) of Police Order which is a cognizable offence now.⁶

20. If Ex-Officio Justice of the Peace is of the opinion that police is committing contempt of his lawful authority, he can proceed under Chapter-X of PPC by sending a complaint to the Magistrates u/s 195 of Cr. P.C. for prosecution as the case may be.

21. It is incumbent upon police officers receiving orders of ex-Officio Justice of the Peace to obey and execute such orders promptly and without fail in order to avoid legal action against them.

22. On receiving the petition under section 22-A Cr.P.C. the SHO, Police Station, Barki, Lahore/ respondent No.3 was under obligation to proceed further under section 154 PPC to register FIR if a cognizable offence was made out. He was also empowered under Rule 24.4 of the Police Rules 1934 to enter the substance of the information or intelligence in the police station diary and to record his reasons for suspecting that the alleged offence has not been committed and thereafter to notify it to the informant that he is not inclined to investigate the case or cause to be investigated.⁷ The moment he received the complainant under section 22-A Cr.P.C. through a specific order passed by the learned ex-Officio Justice of the Peace, he should have acted in accordance with law to comply with the order passed by the learned ex-Officio Justice of the Peace.

23. In view of the above discussion, learned ex-Officio Justice of the Peace/ ASJ, Lahore, was justified in passing order

6. KLR 2015 Criminal cases 211; PLJ 2014 Lahore 161; 2012 P Cr.L.J 1526; 2006 MLD 855; PLD 2005 Lahore 470; PLD 2005 Karachi 285.

7. Abdul Rehman Malik v. Synthia D. Ritchie Americans National and others (2020 SCMR 2037).

dated 12.01.2015 observing that respondent No.3 had failed to comply with the direction issued to him *vide* order dated 31.10.2014. He, thus, rightly directed the CCPO, Lahore to ensure the implementation of the order dated 31.10.2014 through respondent No.3/SHO or to himself proceed under section 551 Cr.P.C. and also to proceed against respondent No.3/SHO under Police Order, 2002 for non-compliance of earlier order. Thus, this petition being devoid of any merit stands **dismissed**.

(Muhammad Amjad Rafiq)
Judge

Approved for reporting.

Judge

M. Arshad *